



## Cell Phone Usage & Texting While Driving

### Never text while driving. It can wait!

Make our roads safer and save lives. Be smart and familiarize yourself with the special "Texting Zone" locations along the New York State Thruway and State Highways.

Under New York State law you cannot use a hand-held mobile telephone or portable electronic device while you drive. Illegal activity includes holding a portable electronic device and

- talking on a handheld mobile telephone
- composing, sending, reading, accessing, browsing, transmitting, saving, or retrieving electronic data such as e-mail, text messages, or webpages
- viewing, taking, or transmitting images
- playing games

If you use a portable electronic device while you drive (except to call 911 or to contact medical, fire or police personnel about an emergency), you can receive a traffic ticket and be subject to a fine and a surcharge.

Conviction of a cell phone use, portable electronic device use or a texting violation will also result in points being added to your DMV driving record. If you receive 11 points in an 18-month period, your driver license may be suspended. To learn more, see [About the NY State Driver Point System](#).

### Restrictions for Motor Carriers and Commercial Vehicle Drivers

- a motor carrier must not allow or require their drivers to use cell phones or texting devices while driving
- a mobile telephone used by a person who operates a commercial motor vehicle shall not be deemed a "hands-free mobile telephone" when the driver presses more than a single button to dial or answer the phone
- a commercial vehicle driver is not allowed to make a phone call or use a texting device while the vehicle is temporarily stationary because of traffic, a traffic control device, or other momentary delays
- a commercial vehicle driver who holds a mobile telephone to, or in the immediate proximity of, his or her ear while the vehicle is temporarily stationary because of traffic, a traffic control
- device, or other momentary delays is also presumed to be engaged in a call

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## Cell Phone Usage & Texting While Driving- continued

- a commercial vehicle driver who holds a portable electronic device in a conspicuous manner while the vehicle is temporarily stationary because of traffic, a traffic control device, or other momentary delays is presumed to be using the device.

### Signatures

I have read and understand the terms and conditions of this policy and agree to comply with them.

Employee signature

Date

Supervisor signature

Date

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